

stat. of W. 2. (f) c. 21. gives a writ of *cessavit hæredi petenti super hæredem tenen' et super eos quibus alienatum fuerit hujusmodi tenementum*: and yet it is adjudged in 33 E. 3. (a) Cessavit 42. where the case was, two coparceners lords, and tenant by fealty and certain rent, one coparcener had issue and died, the aunt and the niece shall not join in a *cessavit*, because the heir (b) shall not have a *cessavit* for the cesser in the time of his ancestor, F. N. B. 209. F. and therewith agrees Plow. Com. 110 a.; and the reason is, because in a *cessavit* the tenant before judgment may render the arrearages and damages, &c. and retain his land, and that he cannot do when the heir brings a *cessavit* for the cesser in the time of his ancestor, for the arrearages incurred in the life of the ancestor do not belong to the heir: and because it would be against common right and reason, the common law adjudges the said Act of Parliament as to that point void. The Statute of (c) Carlisle, made anno 35 E. 1. enacts, that the order of the Cistercians and Augustines, who have a convent and common seal, that the common seal shall be in the keeping of the prior, who is under the abbot, and four others of the most grave of the house, and that any deed sealed with the common seal, which is not so in keeping shall be void: and the opinion of the Court (in an. 27 H. 6. Annuity 41.) was, that this statute was (a) void, for it is impertinent to be observed, for the seal being in their keeping, the

in 2 Brownl. 255 to 266; and in p. 260, it appears that the case was argued by all the Justices of C. B., and at two several days it was argued by Foster, Daniel, and Warburton, against the plaintiff, and the second day by Walmsley, J. and Coke, C.J.: but the argument of Foster, Daniel, and Warburton, are not reported by Brownlow; but he reports fully, 1st, the argument of Walmsley for the plaintiff, and afterwards that of Coke against him. And in page 265, the like reasons and authorities are given by Coke, for his opinion, as appears in his Reports; and then Brownlow mentions only at the end, that 'so he (Coke) concluded that judgment shall be entered for the plaintiff, which was done accordingly.' This last report is, I think, a confirmation of Lord Coke's report, though Lord Coke only reports the effect of the arguments of the justices, who were of opinion against the plaintiff, fol. 116. There is, it is true, in some parts of the argument some things that savour of the pedantry and quaintness peculiar to the time, but nothing to impeach that part of it which is the part objected to by Lord Egerton; and, as above observed, Coke's opinion as to that part at least, is confirmed by many authorities before that case."

In the *City of London v. Wood*, 12 Mod. 669., debt was brought in the Mayor's Court, (a Court holden before the mayor and aldermen) on a bye-law, to recover a forfeiture for refusing to serve the office of sheriff, and such action was brought in the name of the mayor and commonalty, and it was held to be error; and per Holt, C.J., "What my Lord Coke says in *Bonham's case*, in his 8 Co., is far from any extravagancy, for it is a very reasonable and true saying, that if an Act of Parliament should ordain that the same person should be party and Judge, or which is the same thing, Judge in his own cause, it would be a void Act of Parliament; for it is impossible that one should be Judge and party, for the Judge is to determine between party and party, or between the Government and the party; and an Act of Parliament can do no wrong, though it may do several things that look pretty odd; for it may discharge one from his allegiance to the Government he lives under, and restore him to the state of nature: but it cannot make one who lives under a Government Judge and party. An Act of Parliament may not make adultery lawful, that is, it cannot make it lawful for A. to lie with the wife of B.: but it may make the wife of A. to be the wife of B., and dissolve her marriage with A." *Vid.* Doctor and Stud. p. 154. 146. *Day v. Savadge*, Hob. 87. *Stewart v. Lawton*, 1 Bing. 374. S. C. 8 B. Moore. 414.

Serjt. Hill, in his copy of the Reports, refers to Forbe's Parliam. Deb. Vol. VII. p. 84, 85, as mentioning several void Acts.

(f) 2 Inst. 401, 402.

(a) 2 Brownl. 265. 2 Inst. 402. F. N. B. 209 f.

(b) 2 Brownl. 265. Vet. N. B. 138 b. 2 Inst. 442. Com. Dig. Parl. R. 27.

(c) 2 Inst. 580, 581, 582, &c. Skinner 464.

(a) 2 Inst. 588. 2 Brownl. 198. 265.